



CHAPTER xlii.

An Act to confer further powers upon the Colchester Gas Company and to extend their limits of supply and for other purposes. A.D. 1916.
[3rd August 1916.]

WHEREAS by the Colchester Gas Company's Act 1866 (in this Act referred to as "the Act of 1866") the Colchester Gaslight and Coke Company were dissolved and the shareholders therein with other persons were re-incorporated by the name of the Colchester Gas Company (in this Act called "the Company") and were authorised to supply gas within the borough of Colchester and the liberties thereof in the county of Essex:

And whereas further powers were conferred upon the Company by the Colchester Gas Company's Act 1875 (in this Act referred to as "the Act of 1875"):

And whereas there has been a great increase in the demand for gas within the borough in recent years and more especially since the commencement of the present war:

And whereas the Company have extended their mains beyond the borough for the purposes of meeting the demands for gas in parishes adjacent thereto and such mains have been recently further extended for the purpose of meeting military requirements:

And whereas the demand for gas within the borough and the neighbourhood thereof is increasing and will continue to increase considerably:

And whereas in order to enable the Company to meet the demands for gas within the borough and within parishes beyond the same it is expedient to authorise the Company to construct the gasworks and other works as in this Act provided and that their limits for the supply of gas be extended:

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And whereas the share and loan capital of the Company authorised by the Act of 1866 and the Act of 1875 is as follows :—

	Share Capital.		Loan Capital.	
	Original.	Additional.	Original.	Additional.
Act of 1866 - - -	£ 20,000	£ 20,000	£ 5,000	£ 5,000
Act of 1875 - - -	—	10,000	—	2,500

And whereas the whole of the authorised share and loan capital of the Company has been raised and fully paid up and the Company have in addition received the sum of four thousand eight hundred and fifteen pounds eighteen shillings and elevenpence by premiums on the issue of their share capital :

And whereas the Company have expended on purposes to which capital is properly applicable the whole of the sums raised by the issue of the Company's authorised share and loan capital (including the premiums aforesaid) and in addition a sum of two thousand six hundred pounds and upwards and it is expedient to authorise the Company to raise additional capital :

And whereas it is expedient that new provisions be made with reference to the testing and quality of the gas supplied by the Company as in this Act contained :

And whereas it is expedient that further powers be conferred upon the Company and further provisions be made with reference to their undertaking as in this Act contained :

And whereas plans and sections showing the lines situations and levels of the bridges or overhead constructions and footpath authorised by this Act the plans showing also the lands which may be taken compulsorily under the powers of this Act and a book of reference to the said plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands respectively were duly deposited with the clerk of the peace for the county of Essex and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

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1.—(1) This Act may be cited as the Colchester Gas Act 1916.

Short and collective titles.

(2) The Act of 1866 the Act of 1875 and this Act may be cited together as the Colchester Gas Acts 1866 to 1916.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes of this Act and are not inconsistent with the provisions of the Act of 1866 the Act of 1875 and this Act are subject to the provisions of this Act hereby incorporated with this Act (namely):—

Incorporation of general Acts.

The Lands Clauses Acts ;

The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to the conversion of borrowed money into capital ;

Parts I. II. and III. of the Companies Clauses Act 1863 as amended by subsequent Acts ;

The Gasworks Clauses Act 1847 ; and

The Gasworks Clauses Act 1871.

3. In this Act—

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction ;

Interpretation.

The respective expressions “the Act of 1866” and “the Act of 1875” respectively mean the Colchester Gas Company's Act 1866 and the Colchester Gas Company's Act 1875 ;

The expression “the undertaking” means the undertaking of the Company authorised by the Act of 1866 the Act of 1875 and this Act ;

The expression “the borough” means the borough of Colchester ;

The expression “the new limits” means the limits within which the Company are authorised to supply gas by the section of this Act of which the marginal note is “Extension of limits of supply” ;

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The expression “the limits of supply” means and includes the borough and the new limits;

The expression “the corporation” means the mayor aldermen and burgesses of the borough;

The expression “the overhead constructions” means the bridges or overhead constructions by this Act authorised and includes any lifts hoists and other works connected therewith;

The expression “Hythe Quay Road” means the public road leading from the western end of Hythe Bridge to the Corporation’s sewage works;

The expression “employees” when used in reference to the Company includes the officers clerical and other staff workmen and servants employed by the Company.

Application
of Gasworks
Clauses Acts
to Company.

4. In their application to the Company the provisions of the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 as incorporated with the Act of 1866 the Act of 1875 and this Act shall be modified as follows (that is to say):—

- (i) Section 13 of the Gasworks Clauses Act 1847 shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers” were added at the end of that section:
- (ii) Sections 30 to 34 both inclusive of the Gasworks Clauses Act 1847 shall cease to have effect:
- (iii) Section 35 of the Gasworks Clauses Act 1847 shall be read and construed as if the words from “in case the whole” down to the words “have been paid” were omitted therefrom and as though the expression “the prescribed rate” meant the standard rates of dividend or such rates reduced or increased in accordance with the provisions of this Act:
- (iv) The provisions of the Gasworks Clauses Act 1871 shall have effect as if all references to illuminating power and the testing thereof were omitted from that Act:

Provided that the modifications (ii) (iii) and (iv) above stated shall not come into force until the first day of January one thousand nine hundred and seventeen.

GASWORKS.

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5. The Company may upon the lands described in Part I. of the First Schedule to this Act and also upon the lands described in Part II. of that schedule when acquired by the Company erect construct maintain alter improve and renew gasworks with all necessary machinery and apparatus and may maintain continue alter improve extend and renew the gas and other works existing at the passing of this Act on the lands described in Part I. of the said schedule and may in or upon all or any of such lands do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply.

Power to
construct
new gas-
works.

6. The Company may—

Powers as to
residual
products.

(A) Upon any of the lands described in Part I. of the First Schedule to this Act and upon the lands described in Part II. of that schedule when acquired by the Company work up and convert the residual products arising directly or indirectly from the manufacture of gas by them:

(B) Purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture upon the said lands other products of the same kind as the Company are manufacturing from their own residual products Provided that the quantity of any residual product so purchased by the Company in any year shall not exceed one third of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them:

(C) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid:

But the Company shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Company or purchased from other gas undertakings is merely subsidiary.

OVERHEAD CONSTRUCTIONS.

7. Subject to the provisions of this Act the Company may in the lines and situation and according to the levels shown on the deposited plans and sections make and maintain in the

Power to
construct
overhead
construc-
tions.

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The works before referred to are—

A bridge or overhead construction (No. 1) over Hythe Quay Road commencing on the western boundary of the land (c) described in the First Schedule to this Act and terminating on the eastern boundary of the lands (A) described in that schedule ;

A bridge or overhead construction (No. 2) over Hythe Quay Road commencing on the western boundary of the land (E) described in the said schedule and terminating on the eastern boundary of the lands (A) described in that schedule ;

and the Company may use the said works with the conveniences connected therewith for the conveyance of coal and other commodities from and into the gasworks of the Company.

Power to deviate.

8. In making the overhead constructions the Company may deviate laterally to any extent within the limits of deviation shown on the deposited plans in connexion therewith and vertically from the levels shown on the deposited sections to any extent not exceeding one foot downwards and to any extent upwards.

Power to work overhead constructions.

9. The Company may work the overhead constructions by electric steam hydraulic or any other form of mechanical power or by animal power and they may equip the same for working by electrical energy or other mechanical power and may erect and maintain upon any of the lands described in the First Schedule to this Act or any other lands for the time being belonging to the Company all such works and apparatus and do all such things as may be necessary or convenient for the purpose of working the overhead constructions Provided that any works and apparatus erected or maintained by the Company under this section shall be so erected and maintained and electrical energy shall be so used under this section as to prevent any interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of such line but nothing in this proviso shall be deemed to prevent the Company (subject to the provisions of the Telegraph Act 1878) from raising lowering or otherwise

altering any such telegraphic line so far as may be reasonably necessary for the purpose of the erection and working of the overhead constructions. A.D. 1916.

10. If the overhead constructions are not completed within the period of five years from the date when the Treasury shall give their consent to the raising of the money requisite for the erection thereof or within the period of six years from the termination of the present war whichever period shall be the earlier then on the expiration of the earlier of such periods the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of overhead constructions.

FOOTPATH.

11.—(1) Subject as hereinafter mentioned the Company may stop up and discontinue for traffic of every description the existing footpath in the borough affording access between Hythe Quay Road and the footpath leading from Parsons Lane to Recreation Road and in lieu thereof the Company may make and maintain in the line and situation shown on the deposited plans a new footpath affording access between Hythe Quay Road and the footpath leading from Parsons Lane to Recreation Road Provided that in making such new footpath the Company may deviate up to the respective limits of deviation shown on the deposited plans in connexion therewith. Power to stop up existing and construct new footpath.

(2) Such stopping-up shall not take place until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use and as from the date of such certificate all rights of way over or along the existing footpath shall be extinguished and the Company may appropriate for the purposes of the undertaking the site of the existing footpath as far as the same is stopped up:

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

(3) The new footpath when made asphalted and completed shall unless otherwise agreed between the corporation and the Company be repaired and maintained by and at the expense of the corporation.

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LANDS.

Power to acquire lands.

12. The Company may enter upon take and use compulsorily or by agreement and may hold for the purposes of the undertaking the lands hereinafter mentioned (that is to say):—

- (i) The lands shown on the deposited plans and described in Part II. of the First Schedule to this Act:
- (ii) The lands shown on the deposited plans and described in the deposited book of reference in connexion with and required for the purposes of the overhead constructions.

Period for compulsory purchase of lands.

13. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of a period of three years from the date when the Treasury shall give their consent to the raising of the money requisite for the purchase thereof or a period of four years from the termination of the present war whichever period shall expire the earlier.

Confirmation of purchase of land.

14. The acquisition by the Company of the inclosure numbered 1006 on the Ordnance map (second edition 1897) Essex sheet XXVIII-9. is hereby confirmed and the Company may hold and use the same for the purposes of the undertaking.

Correction of errors in deposited plans and book of reference.

15. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to a court of summary jurisdiction for the correction thereof and if it appear to such court that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Essex and a duplicate thereof shall also be deposited with the town clerk of the borough and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according

to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate. A.D. 1916.

16. The Company may for the purposes of the undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the lands described in the First Schedule to this Act any lands and hereditaments not exceeding in the whole five acres which they may require for the purposes of their works and the undertaking but the Company shall not create or permit a nuisance on any such lands. Power to purchase lands by agreement.

17. The Company may purchase or take on lease houses cottages and other buildings for any of their employees and offices showrooms and other buildings for the purposes of the undertaking and may erect fit up maintain and let any such building upon any lands for the time being belonging or leased to the Company. Dwelling-houses for employees offices &c.

18. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands (so far as such provisions are applicable) the Company may sell or let on lease for such period as they think fit or otherwise dispose of any lands or property for the time being belonging to them and which may not at the time be required for the purposes of the undertaking or any easements or rights in or under any lands for the time being belonging to them and may retain and hold or sell and dispose of any interests in or reversion to any lands or property so let and any such sale disposal or lease may be for such consideration and subject to such reservations restrictions and provisions and generally upon such terms and conditions as the Company think fit. Power to sell and lease lands.

19. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

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EXTENSION OF LIMITS.

Extension of
limits of
supply.

20.—(1) The limits within which the Company may supply gas and exercise the powers of the Act of 1866 the Act of 1875 and this Act are hereby extended so as to include in addition to the borough the following parishes and portions of urban district and parish in the county of Essex (that is to say):—

The portion of the urban district of Wivenhoe which is situate to the westward of the River Colne:

The portion of the said urban district which is situate to the northward of an imaginary straight line drawn due east and west through the southernmost corner of Wivenhoe Park:

The parishes of Abberton Boxted Copford East Donyland Fingringhoe Fordham Great Horkesley Langenhoe Langham Layer-de-la-Haye Little Horkesley Stanway and West Bergholt in the rural district of Lexden and Winstree:

The parishes of Ardleigh and Great Bromley in the rural district of Tendring and so much of the parish of Elmstead in the said rural district as is situate to the northward of the imaginary straight line aforesaid.

(2) Within the new limits the Company shall have and may exercise (subject to the section of this Act of which the marginal note is "Price of gas Sliding scale") all and the like powers rights privileges and authorities for and in relation to the supply of gas and be subject to all and the like duties and obligations in respect thereof as they may have and be subject to within the borough.

(3) The Company may continue maintain and use any mains pipes and other works laid down or constructed by them before the commencement of this Act within the new limits as if the same had been laid down or constructed by them under the powers of this Act and the provisions of the Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 shall apply to the said mains pipes and works in all respects as if the same had been laid down or constructed under the authority of this Act.

QUALITY TESTING AND PRESSURE.

Company to
provide
apparatus

21. The Company shall before the first day of January one thousand nine hundred and seventeen provide and thereafter

maintain at the testing-place provided under the Act of 1875 (hereinafter referred to as "the prescribed testing-place") a calorimeter to be from time to time agreed upon between the Company and the corporation or failing agreement to be similar to the calorimeter for the time being prescribed by the metropolitan gas referees for testing the calorific power of gas.

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for testing
calorific
power.

22. As from the first day of January one thousand nine hundred and seventeen the following provisions shall have effect:—

Substituting
standard
calorific
power for
prescribed
illuminating
power.

(A) The calorific power of the gas supplied by the Company shall when tested and corrected in accordance with the provisions of the section of this Act of which the marginal note is "Provisions as to testing for calorific power" be five hundred British thermal units per cubic foot of gas and that power is hereinafter referred to as "the standard calorific power":

(B) Every enactment whereby or by virtue whereof the gas supplied by the Company is required to be of a prescribed illuminating power shall cease to apply with respect to such gas.

23.—(1) The Company shall if and when required at any time within two years from the first day of January one thousand nine hundred and seventeen by any consumer of gas supplied by the Company (other than a consumer by prepayment meter) supply to him and fix free of charge a sufficient number of flat-flame burners suitable in all respects for the consumption of gas of the quality prescribed by this Act in substitution for the flat-flame burners in use at the commencement of this Act.

Company to
supply suit-
able burners
gratis in lieu
of those in
use.

(2) The Company shall also if required at any time within the said period of two years by any consumer of gas supplied by the Company by means of a prepayment meter upon whose premises no incandescent burner shall have been fixed prior to the date of such requirement supply and fix upon the premises free of charge one incandescent burner suitable in all respects for the consumption of gas of the quality prescribed by this Act in exchange for such one as he may select of the flat-flame burners in use by him at such date Provided that notwithstanding anything in this subsection the Company shall not be liable to supply more than one incandescent burner on any one premises.

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(3) Notice of the provisions of this section shall be given on each demand note of the Company sent out during the said period of two years.

Provisions as
to testing
for calorific
power.

24. The following provisions shall apply with respect to the testing for calorific power of the gas supplied by the Company :—

- (1) Any gas examiner appointed under the Gasworks Clauses Act 1871 may by means of the calorimeter provided by the Company under the provisions of this Act test at the prescribed testing-place at any reasonable hour the calorific power of the gas supplied by the Company but not more than one testing for calorific power shall be made on any day except in the event mentioned in subsection (6) of this section :
- (2) The Company may if they think fit on each occasion of the testing of gas under the provisions of this section be represented by some officer who shall not interfere in the testing :
- (3) The calorimeter shall be so used as to yield the total heat value of the gas which shall be developed by the complete combustion in moist (saturated) air of moist (saturated) gas and the products of combustion shall be cooled down to the temperature of the air :
- (4) The result obtained by means of such testing shall be expressed in terms of one cubic foot of gas and shall be corrected for a temperature of 60 degrees Fahrenheit and a pressure balanced by a column of 30 inches of mercury at the same temperature The corrected result shall be deemed to be the calorific power of the gas ascertained by the testing :
- (5) The gas examiner shall forthwith give notice to the Company at their office of any defect of calorific power ascertained by him on any testing made under this section :
- (6) In the event of the calorific power being on any testing ascertained to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day :

(7) The gas examiner shall forthwith after making any testing under this section deliver a report of the result of his testing to the corporation or the justices by whom he was appointed and to the Company and such report shall be receivable in evidence. A.D. 1916.

25. If on any day the calorific power of the gas supplied by the Company is found to be below the standard calorific power they shall be liable to the following penalties in respect of such deficiency (that is to say):— Penalties for deficient calorific power.

If the deficiency does not exceed fourteen British thermal units a sum not exceeding five pounds :

If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding ten pounds :

For each complete twenty-eight British thermal units of defective power a sum not exceeding twenty pounds.

26.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than fifteen-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Pressure.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this section subject to the terms of his appointment at the prescribed testing-place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

27. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which the gas examiner reports or it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. Saving as to penalties.

ADDITIONAL CAPITAL.

28. The Company may from time to time raise additional capital not exceeding in the whole fifty-four thousand pounds by the creation and issue of new ordinary shares or stock and Power to Company to raise additional capital,

A.D. 1916. of preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds Provided that it shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of fifty-four thousand pounds Provided also that the Company shall not raise by the issue of preference shares or stock a greater amount of such additional capital than fifty-two thousand pounds.

New shares
or stock to
be sold by
auction or
tender.

29.—(1) All shares or stock created as additional capital under the powers of this Act shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the town clerk of the borough and the clerk of the district council of every urban or rural district wholly or partially situate in the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply :

(B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be. A.D. 1916.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amount applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold may be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of each class of shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of shares or stock..

30. The additional capital created by the Company under the powers of this Act shall be part of the general capital of the Company and the new shares or stock therein and the holders thereof respectively shall in proportion to the amount of their shares or stock be entitled to the like rights of voting (except as hereinafter provided) and any other rights qualifications and privileges and be subject to the like provisions and liabilities as the other holders of shares or stock of the same class or description. Privileges
&c. of
holders of
additional
capital.

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Restriction
as to votes
in respect of
preference
capital.

31. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock in the additional capital created under the powers of this Act to which a preferential dividend shall be assigned.

Votes of
holders of
stock.

32. The prescribed scale of voting in respect of any stock in the additional capital by this Act authorised shall be as follows (that is to say):—

Every holder of such stock shall have one vote for every twenty pounds of stock up to two hundred pounds and he shall have an additional vote for every one hundred pounds of stock beyond the first two hundred pounds thereof held by him up to two thousand pounds of stock and an additional vote for every two hundred pounds of stock beyond the first two thousand pounds.

Dividends of
Company
limited.

33.—(1) After the thirty-first day of December one thousand nine hundred and sixteen the profits of the Company which may be divided in respect of any half-year among the holders of the ordinary and preference capital of the Company shall not (except as mentioned in subsection (2) of this section) exceed the following rates (namely):—

On any preference capital to be issued as additional capital under the provisions of this Act such rate (not exceeding the rate of six per centum per annum) as shall be specified in the resolution creating such stock:

On the original capital referred to in paragraph (A) of section 24 of the Act of 1866 the rate of ten per centum per annum:

On the additional capital referred to in paragraph (B) of section 24 of the Act of 1866 on the additional capital issued under the Act of 1875 and on any ordinary capital issued under this Act the rate of seven per centum per annum.

(2) Notwithstanding the foregoing provisions of this section the respective rates of dividend of ten per centum per annum and seven per centum per annum (in this Act referred to as “the standard rates of dividend”) payable on the aforesaid classes of ordinary capital of the Company shall after the date aforesaid be subject to alteration in accordance with the provisions of the section of this Act of which the marginal note is “Price of gas Sliding scale.”

34. In case in any half year the funds of the Company applicable to dividends shall be insufficient to pay the full amount of dividends at the authorised rates on each class of ordinary shares or stock in the capital of the Company a proportionate reduction shall be made in the dividends on each class.

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Dividends on different classes of ordinary capital to be paid proportionately.

35. The Company may from time to time borrow on mortgage of the undertaking—

Additional borrowing powers.

(A) In respect of the fully paid-up capital of fifty thousand pounds created or issued under the Act of 1866 and the Act of 1875 and of the premiums received on the issue thereof any further sum or sums not exceeding in the whole five thousand five hundred pounds:

(B) In respect of the additional capital by this Act authorised to be raised any sum or sums not exceeding in the whole one-third part of the amount which the Company have at the time actually raised by the issue of shares or stock in such additional capital but no sum shall be borrowed in respect of any amount so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

36. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds.

Appointment of receiver.

37.—(1) The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and section 18 of the Act of 1875.

Debenture stock.

(2) Notice of the effect of the said section 18 shall be endorsed on all mortgages and certificates of debenture stock granted or issued after the passing of this Act.

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Issue of
redeemable
preference
capital and
debenture
stock.

38.—(1) If the Company desire to raise by the issue of preference shares or stock any capital which they are by this Act authorised to raise or to issue any debenture stock under the powers of this Act they may create and issue such preference shares or stock or debenture stock so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed by a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may—

(A) Call in and pay off the shares or stock or any part thereof at any time before the fixed date of redemption; and

(B) Redeem the shares or stock or any part thereof either by paying off the shares or stock or by issuing to any shareholder or stockholder subject to his consent other shares or stock in substitution therefor and may for the purpose of providing money for paying off the shares or stock or of providing substituted shares or stock create and issue new shares or stock (either redeemable or irredeemable) or re-issue shares or stock originally created and issued under this section provided that the creation and issue of any preference capital under this section does not make the total nominal amount of preference and ordinary capital issued under this Act exceed the amount of such capital which the Company are by this Act authorised to issue and provided also that the creation and issue of debenture stock under this section is not in excess of the amount of debenture stock which the Company are for the time being authorised to create and issue under the powers of this Act.

Priority of
mortgages
and debenture
stock
over other
debts.

39. All money to be raised by the Company on mortgage or by the issue of debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to

or pari passu with the interest on their mortgages or debenture stock nor shall anything in this section affect any claim for land taken used or occupied by the Company for the purposes of the undertaking and works or injuriously affected by the construction thereof or by the exercise of any power conferred upon the Company.

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40. The principal moneys secured by all mortgages granted by the Company in pursuance of the powers of the Act of 1866 or the Act of 1875 and subsisting at the passing of this Act shall during the continuance of such mortgages have priority over the principal moneys secured by any mortgages granted after the passing of this Act.

Priority of principal moneys secured by existing mortgages.

41. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the conversion of borrowed money into capital shall cease to apply to the Company.

Borrowed money not to be converted into capital.

42. If any money is payable to any shareholder stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian receiver or committee of his estate shall be a sufficient discharge.

Receipt in case of persons not sui juris.

43. The Company shall not under the powers of this Act raise or borrow any money (except for the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act") during the present war and within twelve months thereafter unless the consent of the Treasury has been previously obtained.

Consent of Treasury to raising of money.

44.—(1) All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Application of money.

(2) The Company may apply to any of the purposes of this Act to which capital is properly applicable any capital moneys which they have raised or are authorised to raise under the Act of 1866 or the Act of 1875 Provided that the powers conferred by this subsection shall not be exercised during the continuance of the present war and for twelve months thereafter unless the consent of the Treasury has been previously obtained.

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PRICE OF GAS SLIDING SCALE RESERVE FUND &c.

Price of gas
Sliding scale.

45.—(1) As from the first day of January one thousand nine hundred and seventeen the standard price to be charged by the Company for gas supplied by them to persons within the borough who shall burn the same by meter other than a prepayment meter shall be three shillings and threepence per one thousand cubic feet but it shall be lawful for the Company to increase or reduce the price charged by them for gas so supplied subject to a reduction or increase in the rates of dividend on the ordinary capital as follows:—

In respect of any half-year during any part of which the price so charged by the Company within the borough shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the price so charged shall have been above the standard price be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by one shilling and ninepence for every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

In respect of any half-year during the whole of which the price so charged by the Company within the borough shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each one penny by which the price so charged shall have been below the standard price be increased above the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by one shilling and ninepence for every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

Provided that if in any half-year the dividends payable shall comprise a fractional amount less than one quarter per centum the directors may in their discretion either add the same to the reserve fund or may defer the payment of such fractional amount until the payment of and pay the same with the next or some succeeding dividends.

(2) The prices to be charged by the Company for gas supplied by them within the new limits to consumers who shall burn the same by meter other than a prepayment meter shall be limited as follows (that is to say):—

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(A) Within so much of the parish of Stanway as is situate within one hundred yards on either side of the road known as the London Road such prices shall not exceed the prices for the time being charged by the Company to consumers under like circumstances within the borough:

(B) Within the parish of East Donyland such prices shall not exceed by more than sixpence per one thousand cubic feet the prices for the time being charged by the Company to consumers under like circumstances within the borough:

(c) Within the remainder of the new limits such prices shall not exceed by more than ninepence per one thousand cubic feet the prices for the time being charged by the Company to consumers under like circumstances within the borough.

46. Notwithstanding anything contained in this or any other Act relating to the Company the price to be charged by the Company for a supply of gas may vary according to the purposes for which the gas is supplied as may be agreed upon between the Company and the person taking such supply. Provided that the Company shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for the same purpose under like circumstances.

Power to vary price according to purpose for which gas is supplied.

47. As from the first day of January one thousand nine hundred and seventeen the price to be charged by the Company to the corporation for gas supplied for the public lamps shall be less by the amounts hereinafter mentioned than the lowest price for the time being charged by the Company for gas supplied by them within the borough for lighting purposes only to persons (other than Government departments) who shall burn the same by meter other than a prepayment meter (that is to say):—

Price of gas for public lamps.

In any year ending on the thirty-first day of December in which the total amount of gas supplied by the Company

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—

to the corporation and to be paid for by the corporation shall exceed five million cubic feet and shall not exceed nine million cubic feet by threepence per thousand cubic feet :

In any year ending on the thirty-first day of December in which the total amount of gas so supplied and to be paid for shall exceed nine million cubic feet by sixpence per thousand cubic feet.

Reserve
fund.

48. Where in respect of any half-year after the thirty-first day of December one thousand nine hundred and sixteen the dividends which may be paid by the Company on the ordinary capital shall exceed the standard rates of dividend by reason of the price charged by the Company for gas to persons within the borough who consumed the same by meter (other than a prepayment meter) in such half-year having been below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in respect of such half-year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and the reserve fund of the Company existing at the date aforesaid may be invested in Government or other securities or may be placed on deposit at interest with the Company's bankers and the dividends and interest arising from such securities or moneys on deposit may also be invested in the same or the like securities or placed on deposit as aforesaid in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividends in any half-year in which the clear profits of the Company shall be insufficient to enable the Company in such half-year to pay the dividends at the authorised rates on the ordinary capital and save as in this Act provided no sum shall in any half-year after the date aforesaid be carried by the Company to any reserve fund :

Provided always and it is hereby enacted that if the reserve fund of the Company at the thirty-first day of December one thousand nine hundred and sixteen shall exceed the sum of five thousand pounds an amount equal to such excess shall before the first day of January one thousand nine hundred and eighteen be transferred from the reserve fund to the credit of the profit and loss (net revenue) account of the undertaking.

49. If the clear profits of the Company in any half-year after appropriating and setting apart such sums as may be determined on to any funds by this Act authorised amount to a larger sum than is sufficient to pay the dividends on the preference capital and the dividends at the authorised rates on the ordinary capital the excess shall be left at the credit of the profit and loss (net revenue) account of the undertaking and be carried forward to the next following half-year Provided that it shall not be lawful for the Company after the thirty-first day of December one thousand nine hundred and seventeen to carry forward at the end of any half-year to the credit of the said account any sum exceeding the total of the following amounts (that is to say):—

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Application
of excess of
profits.

- (A) The amount required by the Company for paying any dividend which the Company are entitled to pay but have not paid in respect of that half-year; and
- (B) An amount equal to the total sum which the Company would be lawfully entitled to distribute as dividends on their preference and ordinary capital in respect of the next following year having regard to the price charged by them for gas at the commencement of such half-year.

SPECIAL PURPOSES FUND BENEFIT FUND &c.

50.—(1) As from the first day of January one thousand nine hundred and seventeen the directors may if they think fit in any half-year appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per centum of the paid-up capital of the Company including premiums to a fund to be called “the special purposes fund.”

Power to
create a spe-
cial purposes
fund.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

- (A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or
- (B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

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(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) Subject to the provisions of subsection (3) of this section the Company may transfer to the credit of the special purposes fund such sum as they shall think fit out of the amount standing on the thirty-first day of December one thousand nine hundred and fifteen to the credit of the profit and loss account which was carried forward to the next half-year.

Power to
grant pen-
sions &c.

51.—(1) The directors may grant such gratuities pensions superannuation or other allowances or make such other payments as they may think fit to any employees of the Company.

(2) In the event of any such employee being killed in action or dying of wounds injuries or disease received or contracted whilst serving with any of His Majesty's forces in war the directors may where adequate provision is not otherwise made grant such gratuities pensions or allowances or make such other payment as they may think fit to the widow or family or any dependent of such employee.

(3) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to such employees and to any such widow family or dependent as aforesaid such gratuities pension or other allowance or payment as are by this section authorised to be granted or made and may for all or any of the purposes of this section apply the funds and revenues of the Company.

Power to
directors to
make dona-
tions sub-
scriptions
&c.

52. The directors may subscribe or make donations to any fund raised in any case of national emergency or to infirmaries and hospitals and convalescent homes and other institutions and objects or to any exhibitions or to the benevolent and sick funds

of the employees of the Company and may subject to the provisions of this Act for any of those purposes apply the funds and revenues of the Company Provided that the total sum so applied shall not in any year exceed fifty guineas. A.D. 1916.

53.—(1) The directors may with the sanction of a majority of the votes of the shareholders present personally or by proxy and entitled to vote and voting at an extraordinary general meeting of the Company prepare put in force and from time to time modify alter or rescind a scheme or schemes enabling the employees of the Company or any class or classes of such employees as may be defined in such scheme or schemes to participate in the profits of the undertaking or of any part of the undertaking as part of the terms of remuneration for the services of any such employee. Profit-sharing and savings.

(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee above the age of sixteen years and shall be in writing and may be made on the part of the Company under the hands of any two directors or under the hand of the secretary or of any person from time to time appointed in that behalf by resolution of the directors.

(3) Notwithstanding anything contained in any Act relating to the Company the Company may if and whenever required by any persons being the trustees under any such scheme so to do issue to any employee of the Company or to such trustees such amount of ordinary stock as the trustees may specify (being within the limit of the amount of stock which the Company may for the time being be authorised to issue) without first offering such stock for sale by public auction or tender Provided that any stock issued under the provisions of this section shall be issued at the average price at which according to the Company's books sales of stock or shares of the same class were effected within the period of six months immediately preceding the issue or if there has been only one sale or no sale of stock or shares of the same class within the said period then at the price at which the last sale of stock or shares of the same class was effected making due allowance in each case for any enhancement in price by reason of any accrued dividend Such value to be ascertained by the said trustees.

(4) The directors may also in connexion with any such schemes or otherwise accept on deposit on behalf of any

A.D. 1916. — employee any savings or other sums of money belonging to such employee and pay interest thereon out of the revenues of the Company.

Regulations
affecting
profit shar-
ing scheme.

54.—(1) The regulations respectively set forth in Parts I. and II. of the Second Schedule to this Act shall apply and have effect in relation to (A) any stock or money belonging to any person or to which any person may be entitled under the terms of any scheme already or which may hereafter be established enabling the employees of the Company or any of them to participate in the profits of the Company and (B) to any money deposited with the Company by any person in their employment otherwise than under any such scheme.

(2) The Board of Trade if they think fit may at the request of the Company by order revoke alter or add to any of the said regulations or make any new regulations which in the view of the Board would be conducive to the efficient working of any such scheme for the time being established or in other respects convenient and any order made by the Board in pursuance of this subsection shall have effect as if enacted by Parliament but the Board shall not in any case make any order under this subsection until notice of the intention to make the order has been given by advertisement or otherwise as the Board may direct and an opportunity has been given to any person who appears to the Board to be affected thereby of stating any objections he may have thereto.

ADMINISTRATIVE PROVISIONS.

Closing of
transfer
books pre-
vious to de-
claring divi-
dend or pay-
ing interest.

55.—(1) The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may close the register of transfers of debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and in the case of either such register they may fix a day for closing the same of which seven days' notice shall be given either by circular to each proprietor or by advertisement in a newspaper published or circulating in the limits of supply.

(2) Any transfer of stock or debenture stock made during the time when the register of transfers or the register of transfers of debenture stock as the case may be is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently

to the declaration of any such dividend or the payment of any such interest as the case may be. A.D. 1916.

56. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary and auditors. Directors may determine remuneration of secretary &c.

57. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected at a general meeting a director of the Company unless notice in writing signed by a shareholder of the Company that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the office of the Company fourteen days at least before the day of election. Notice of candidature for office of director.

58. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder of the Company duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder and for that purpose may execute on behalf of the shareholder the necessary form of proxy Provided that the instrument appointing the attorney shall be transmitted to the secretary of the Company at the same time as the instrument appointing the proxy. Appointment of proxies.

59. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares in the capital of the Company any one of those persons may vote at any meeting (at which holders of shares of the same class are entitled to vote) either personally or by proxy in respect of the shares as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares shall alone be entitled to vote in respect thereof. Joint holders.

MISCELLANEOUS.

60. The Company may lay down repair take up alter relay and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual product thereof or for any purpose connected with their business and the provisions of the Gasworks Power to lay pipes for ancillary purposes.

A.D. 1916. — Clauses Act 1847 with respect to the breaking-up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay pipes in streets not dedicated to public use.

61. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in the Act of 1866 and this Act.

Company may contract for supply in bulk.

62. The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such period not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond the limits of supply.

Charge for gas supplied by means of prepayment meters.

63.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the same part of the limits of supply through any other kind of meter or by any other method of supply.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of a meter and the fittings used therewith or at the rate of one shilling per thousand cubic feet if such fittings include a cooking-stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters as the case may be and the cost of collection and other costs incurred by the Company in connexion therewith. A.D. 1916.

(5) For the purpose of this section the expression "pre-payment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

64. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand from the Company a supply or the continuance of a supply of gas for premises having a supply of gas from an installation other than that of the Company or a supply of electricity unless he shall have previously agreed to pay to the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises and the minimum annual sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889. Supply of gas when consumer has separate supply.

65. Notwithstanding anything contained in any enactment to the contrary the Company shall not be obliged until the expiration of six months from the service of notice upon the Company requiring them so to do to give from any main a supply of gas for any purpose other than lighting or domestic use in any case where the capacity of such main is at the date when such notice is served insufficient for such purpose. Amending obligations as to supply of gas.

66. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:— As to construction and placing of pipes &c. between mains and meters.

(1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as the same are intended to be covered over:

(2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

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- (3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to enter premises and remove fittings.

67. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to

hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises. A.D. 1916.

68.—(1) In any case in which the Company are by virtue of any enactment relating to the undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall reconnect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847: As to mode of cutting off supplies.

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) shall have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

69. In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises (whether under the existing powers of the Company or under the powers conferred by this Act) and the occupier so in default shall desire to resume such supply he shall pay to the Company the reasonable expenses of re-connecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses. Occupiers to pay expenses of reconnecting disconnected supply.

70. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall Period of error in defective meters.

A.D. 1916. be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Gas consumers to give notice to Company before removing.

71. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in any default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Fittings not to be subject to distress and though fixed to premises to remain property of Company.

72.—(1) Subject as hereinafter provided any meters fittings and other gas apparatus (in this section called "fittings") let by the Company on hire under the provisions of the Act of 1866 or the Acts incorporated therewith shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under the process of any court or proceedings in bankruptcy against the person in whose possession the same may be.

(2) Subject as hereinafter provided all fittings let by the Company on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which such fittings are or shall be fixed.

(3) The Company shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Power to take licences for use of patents.

73. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending

any invention in relation to the production manufacture utilisation or distribution of gas or materials used in or resulting from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention. A.D. 1916.

74. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of such consumer. Power to require use of anti-fluctuators for gas engines.

75. The Company may refuse to supply gas to any person whose payments for the supply of gas are for the time being in arrear (not being the subject of a bona fide dispute) whether any such payments be due to the Company in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises. Power to refuse to supply gas to persons in debt.

76. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company. Notice to discontinue supply of gas.

77. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or in print or by a stamp or if it be a notice to pay any charge in respect of a supply of gas by the name either of the secretary or of such other officer as aforesaid being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or business. Authentication and service of notices by Company.

A.D. 1916. — or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper enquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Recovery of penalties &c.

78. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of demands.

79. Proceedings for the recovery of any demand made under the authority of this Act or the Act of 1866 or the Act of 1875 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Repeal of certain provisions of existing Acts.

80. The sections of the Act of 1866 and the Act of 1875 which are specified in the first column of the Third Schedule to this Act shall as from the respective dates mentioned in the third column of the said schedule be by virtue of this Act repealed to the extent mentioned in the second column of that schedule and section 29 of the Act of 1875 shall be construed accordingly Provided that the repeal of section 17 of the Act of 1875 shall not prejudice any appointment of a receiver which may have been made or the continuance of any proceedings which may be pending under the provisions of that section.

Saving as to general Acts.

81. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

For protection of corporation.

82. The following provisions for the protection of the corporation shall have effect as regards new works carried out by the Company under the powers of this Act and as far as applicable as regards the alteration improvement enlargement extension renewal or reconstruction of existing works unless

otherwise agreed between the corporation and the Company A.D. 1916.
(that is to say):—

- (1) The overhead constructions shall be constructed with in each case a clear span across Hythe Quay Road of not less than forty feet between the abutments and a clear headway above the surface of the crown of the road of not less than seventeen feet six inches and shall be so worked as not to cause any nuisance or any interference with or injury to the passengers or traffic on the road and no buckets or other plant shall be allowed to hang below the bottom of the bridge girder on either construction :
- (2) In constructing the new footpath authorised by the section of this Act whereof the marginal note is "Power to stop up existing and construct new footpath" the Company shall to the reasonable satisfaction of the surveyor of the corporation asphalt the same and provide erect and maintain along the boundary of the adjoining property of the corporation an unclimbable iron fence of a height of not less than six feet from the surface of the ground :
- (3) All mains pipes and works to be laid in or along any road vested in or in upon or across any bridge belonging to the corporation shall be laid in such position in or at the side thereof as the corporation in writing under the hand of their surveyor may reasonably direct :
- (4) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall (except for the laying connecting or repairing of consumers' service pipes and except in cases of emergency) as regards any such road or bridge be not less than seven clear days instead of three clear days :
- (5) The plan required by section 9 of the last-mentioned Act shall as regards any such bridge be on a scale of not less than eight feet to an inch and as regards any such road or the approach to any such bridge on a scale of not less than $\frac{1}{2500}$ and in the case of a bridge such plan shall be accompanied by sections to suitable scales to show clearly the proposed works and

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shall (except for the laying connecting or repairing of consumers' service pipes and except in cases of accidental leakage or burst or other emergency) be delivered to the corporation or their surveyor by the Company not less than in the case of a bridge fourteen days and in all other cases seven days before the Company commence to open or break up any road or interfere with any bridge or other property of the corporation for the purpose of executing the works:

- (6) Nothing in this Act shall authorise the Company to interfere with the structural part of any such bridge without the consent in writing of the surveyor to the corporation. Such consent shall not be unreasonably withheld and may be given upon such conditions (not being a money payment) as the corporation may reasonably determine:
- (7) All works shall be so executed by the Company as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any such road or over any such bridge or the approaches thereto and the Company shall not except with the written consent of the said surveyor break up at any one time a greater continuous length than one hundred yards of any road:
- (8) Where any new mains or pipes of the Company are to be laid or constructed beneath the carriageway of any road or bridge the same shall if possible be laid or constructed at such a depth that not less than two feet in the case of cast-iron mains or pipes and one foot six inches in the case of steel mains or pipes shall intervene between the surface of the carriageway and the upper surface of such mains or pipes. Any difference as to the possibility of so laying or constructing any such mains or pipes shall be determined by arbitration as hereafter in this section provided:
- (9) Whenever it shall be found necessary by the Company to break up any street within the borough not dedicated to public use in which is laid any pipe drain sewer tunnel or other work vested in the corporation the provisions of the Gasworks Clauses Act 1847 with reference to the breaking up of

streets for the purpose of laying pipes shall apply as if the corporation in addition to any other persons were persons having the control or management of such street: A.D. 1916.

- (10) If any difference arises at any time between the corporation and the Company under this section such difference shall be settled by the arbitration of an engineer to be agreed upon between the corporation and the Company and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to the arbitration.

83. For the protection of the county council of the administrative county of Essex (in this section called "the county council") the following provisions shall unless otherwise agreed in writing between the Company and the county council apply and have effect within the new limits (that is to say):—

For protection of Essex County Council.

- (1) In the case of any trunk mains to be laid down by the Company under the powers of this Act the Company shall not permit any trench made by them in any main road vested in and maintainable by the county council to be open for a greater consecutive distance than four hundred yards if in such length of four hundred yards there is not room throughout for two carts to pass one another and in the case of any other main to be laid down in any such road under the powers of this Act there shall not in like circumstances be more than two hundred consecutive yards in length of trench open at any one time and the Company shall if and when required by the county council or their surveyor provide to the satisfaction of the county council for the regulation of traffic while any trench referred to in this subsection shall remain open:
- (2) In approving the plan to be delivered to the county council under section 9 of the Gasworks Clauses Act 1847 the county council may require that all mains and pipes of the Company shall wherever practicable be laid in or at the side of the road and if any main or pipe of the Company shall be laid

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below the surface of the carriageway of any main road at a depth of less than two feet the county council shall not be liable for or in respect of any damage or injury which may be caused to such main or pipe by the use by the county council of any steam or other roller for the repair of any such road or of any traction engine belonging to the county council provided that such roller or engine does not exceed twelve tons in weight:

- (3) In the case of any main or pipe which it is reasonably necessary to lay otherwise than in the roadway over any county or main road bridge vested in the county council the same shall be carried on the structure of any such bridge in such manner as the county council may in writing under the hand of their surveyor reasonably direct and except as aforesaid the Company shall not interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the county council which consent shall not be unreasonably withheld:
- (4) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking-up of streets for the purpose of laying pipes as modified by this section shall in their application to the laying of any pipe in such main road county or main road bridge and the roadway over and approaches to such bridge be read and construed as if the notice required by section 8 of that Act was not less than seven clear days instead of three clear days:
- (5) The exercise of any of the powers of the Company within the new limits shall not interfere with prejudice or affect the right of the county council at any time to alter the level of or deviate or improve in any manner they think fit any main road in or along which any mains or pipes of the Company shall have been laid and the Company shall on receiving notice in writing under the hand of the clerk or surveyor of the county council so to do alter with all reasonable despatch the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in case

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of difference shall be determined by arbitration in the manner hereinafter prescribed and the county council shall repay to the Company the expenses reasonably incurred by the Company in effecting any such alteration :

- (6) The exercise of any powers of the Company under this Act within the new limits shall not prejudice or affect the right of the county council at any time to remove alter rebuild widen or repair any county or main road bridge or the approaches to any such bridge or the roadway over the same in over or attached to which any mains pipes or works of the Company are carried in the same manner as the county council might have removed altered rebuilt widened or repaired such bridge roadway or the approaches if this Act had not been passed and such mains pipes or works had not been so laid or attached and the county council shall not be required to repay to the Company any expense to which the Company may be put by reason or in consequence of any such removal alteration rebuilding widening or reparation but the county council shall take all reasonable precautions to prevent injury to the works of the Company and shall pay compensation for any loss which the Company may sustain by reason of any such injury In the event of any such bridge roadway or approaches being removed altered rebuilt widened or repaired as aforesaid the Company shall at their own cost in all things alter the position of any such mains or pipes carried in over or attached to such bridge or approaches as aforesaid in such manner as the county council or their surveyor may reasonably direct Provided that during any such removal alteration rebuilding widening or reparation the county council shall afford to the Company all reasonable facilities for temporarily carrying such mains pipes and works across any stream or river so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains or pipes and the Company may carry such mains pipes and works accordingly :

- (7) If the Company shall after reasonable notice from the county council under the hand of their surveyor

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neglect to do or complete any work or act required by subsections (5) and (6) of this section to be done by the Company then and in any such case the county council may do such work or act themselves under the superintendence (if given) of the Company completing the same with all reasonable expedition and in a proper and workmanlike manner and causing as little damage or inconvenience to the Company as circumstances admit and in respect of any work or act required by subsection (6) the Company shall repay to the county council the reasonable cost of doing any such work or act:

- (8) The county council shall not execute any works under this section or enforce any of the provisions of this section so that the supply of gas by the Company shall be interrupted and if the county council so interrupt or cause to be interrupted the supply of gas they shall repay to the Company any loss damages or expenses to which the Company may thereby be put or become subject:
- (9) If any difference at any time arises between the county council and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid.

For protec-
tion of Lex-
den and
Winstree
Rural Dis-
trict Council.

84. For the protection of the rural district council of Lexden and Winstree (hereinafter referred to as "the Lexden Council") the following provisions shall unless otherwise agreed between the Lexden Council and the Company have effect (that is to say):—

- (1) If after the expiration of five years from the termination of the present war the Company have not laid down mains for the purpose of affording a supply of gas in any of the parishes included in the new limits and situate at the date of the passing of this Act in the rural district of Lexden and Winstree and shall not extend their mains to any of those

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parishes within twelve calendar months after written notice from the Lexden Council requiring them to do so nothing in this Act shall prevent any company person or local authority having statutory power so to do from supplying gas in such of those parishes as shall not be supplied by the Company and the Company shall not oppose any application by any company body or person or by the council of any urban district in which any such parish not supplied by the Company or any part of any such parish may hereafter be comprised for an Act of Parliament or Provisional Order for the purpose of obtaining power to provide a supply of gas in such parish or part of a parish as the case may be :

- (2) The provisions of the section of this Act of which the marginal note is "For protection of Essex County Council" shall extend and apply to and enure for the benefit and protection of the Lexden Council as if in such provisions the expression "the county council" meant the Lexden Council and the respective expressions "main road" and "county or main road bridge" meant respectively a road and a bridge vested in and maintainable by the Lexden Council.

85. For the protection of the rural district council of Tendring (hereinafter called "the Tendring Council") the following provisions shall unless otherwise agreed between the Tendring Council and the Company have effect (that is to say):—

For protection of Tendring Rural District Council.

If after the expiration of five years from the termination of the present war the Company have not laid down mains for the purpose of affording a supply of gas in the parishes of Ardleigh and Great Bromley and so much of the parish of Elmstead as is included within the new limits and shall not extend their mains to any of those parishes or portion of parish within twelve calendar months after written notice from the Tendring Council requiring them to do so nothing in this Act shall prevent any company person or local authority having statutory power so to do from supplying gas in such parishes or portion of parish as shall not be supplied by the Company and the Company shall not oppose any application by any company body or person or by the council of any urban district in which any such parishes

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or portion of parish not supplied by the Company may hereafter be comprised for an Act of Parliament or Provisional Order for the purpose of obtaining power to provide a supply of gas in such parish or portion of parish.

For protec-
tion of Great
Eastern Rail-
way Com-
pany.

86. Notwithstanding anything in this or any other Acts contained the following provisions for the protection of the Great Eastern Railway Company (hereinafter called "the railway company") shall be in force and have effect and be binding on the Company :—

(1) In laying down and in executing any works in connexion with the laying down or the repair and renewal of any mains pipes or other works which the Company may by this Act be authorised to lay down and execute upon across over under or adjoining the railways lands or property now or hereafter belonging to or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings of or repairable by the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the chief civil engineer of the railway company and (except in cases of emergency arising from defects in any of the pipes or other works) only according to plans and sections to be previously submitted to and reasonably approved by him and in all things by and at the expense of the Company Provided always that if such engineer shall not approve or disapprove any such plans or sections so submitted to him within fourteen days after the same are delivered or shall refuse or neglect for the space of seven days after being requested so to do by the Company to superintend the work the Company may proceed with the work without the approval of the plans and sections and without the superintendence of the said engineer :

(2) All such works matters and things shall be constructed executed and done so as to avoid as far as reasonably possible any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of the traffic over such railways or at any station thereon and if any injury or interruption shall arise

from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge level crossing or other property the Company shall make compensation in respect thereof to the railway company the amount of such compensation together with full costs to be recoverable from the Company by all and the same means as any simple contract debt is recoverable:

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- (3) Any dispute or difference which may arise between the railway company and the Company under this section shall be settled by arbitration by an engineer or other fit person to be appointed in default of agreement between the parties by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the Arbitration Act 1889 shall apply to any such arbitration.

87.—(1) All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue. Costs of Act.

(2) The Company may apply to the payment of the said costs charges and expenses such sum as they think fit out of the amount standing on the thirty-first day of December one thousand nine hundred and fifteen to the credit of the profit and loss account which was carried forward to the next account.

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The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

GAS LANDS.

PART I.

LANDS BELONGING TO THE COMPANY AT THE PASSING OF THIS ACT.

(A) Lands containing by admeasurement 9 acres 2 roods or thereabouts bounded on the north partly by garden ground belonging or reputed to belong to James Noah Paxman and in the occupation of Thomas Steggles and partly by the oil mill land and premises belonging or reputed to belong to and in the occupation of Owen Parry Limited on the east partly by the oil mill land and premises aforesaid partly by Hythe Quay Road and partly by the Anchor Inn and the curtilage thereof on the south partly by land and buildings belonging or reputed to belong to and in the occupation of the corporation and partly by the piece or parcel of land described in Part II. of this schedule and on the west partly by the last-mentioned land partly by Parsons Lane partly by a public footpath leading from Parsons Lane to Recreation Road partly by garden ground belonging or reputed to belong to James Noah Paxman and in the occupation of Thomas Steggles and partly by the oil mill land and premises aforesaid.

(B) A piece or parcel of land containing by admeasurement 16 perches or thereabouts and bounded on the north by Hythe Quay on the east by the River Colne on the south by land belonging or reputed to belong to and in the occupation of the corporation and on the west by Hythe Quay Road.

(C) A piece or parcel of land containing by admeasurement 21 perches or thereabouts and bounded on the north by land belonging or reputed to belong to and in the occupation of the corporation on the east by the River Colne on the south by a passage leading from Hythe Quay to Hythe Quay Road and on the west by Hythe Quay Road.

(D) A piece or parcel of land containing by admeasurement 32 perches or thereabouts and bounded on the north by the aforesaid passage on the east by the River Colne on the south by land and premises belonging or reputed to belong to and in the occupation of Thomas Moy Limited and on the west by Hythe Quay Road.

(E) A piece or parcel of land containing by admeasurement 20 perches or thereabouts and bounded on the north by the aforesaid land and premises belonging or reputed to belong to Thomas Moy Limited on the east by the River Colne on the south partly by the River Colne and partly by land belonging or reputed to belong to and in the occupation of the corporation and on the west by Hythe Quay Road. A.D. 1916.

PART II.

LANDS AUTHORISED TO BE ACQUIRED BY THE COMPANY.

A piece or parcel of land containing by admeasurement 35 perches or thereabouts and being so much of the inclosure numbered 1018 on the Ordnance map $\frac{251}{00}$ (2nd edition 1897) Essex sheet XXVIII.-9 as lies to the north-eastward of an imaginary straight line drawn from the north-westernmost corner of the said inclosure to the south-westernmost corner of the inclosure numbered 1006 on the said Ordnance map.

THE SECOND SCHEDULE.

REGULATIONS AFFECTING PROFIT-SHARING SCHEME.

PART I.

REGULATIONS AS TO DISPOSAL OF STOCK &C. ON DEATH OF CO-PARTNER.

1. In this schedule "the trustees" means the trustees appointed under any scheme for the time being in force enabling the employees of the Company or any of them to participate in the profits of the Company "appointor" means any person entitled to make a nomination under clause 2 of this Part of this schedule "stock" means stock of the Company "deposits" means and includes any bonus accumulation of dividends and interest savings and other sums of money of an appointor credited to his account or due to him under any such scheme or in the books of the Company "nominee" means any person or persons named in a nomination made under this schedule "beneficiary" means and includes any nominee entitled under a nomination made under this schedule and any person entitled under clause 7 of this Part of this schedule to be registered as holder of any stock or to be paid any deposits and any references to the "value" of stock shall be deemed to refer to the average price at which according to the Company's books sales of stock of the same class were effected within the period of six months immediately preceding the date on which the value of the stock is required to be

A.D. 1916. — determined or if there has been only one sale or no sale of such stock during such period then at the price at which the last sale of such stock was effected making due allowance for any probable change in value since such date due to the accrual or payment of dividend.

Disposal of stock and deposits by nomination.

2. Subject to and in accordance with the regulations set forth in Part II. of this schedule any person holding in his own right any stock under any such scheme as aforesaid or having any bonus accumulation of dividends and interest savings or other sums of money left in the hands of or deposited with the Company under any such scheme or having any money deposited with the Company otherwise than under any such scheme may if he be of the age of sixteen years or upwards nominate any person or persons who on the death of the appointor shall subject to the provisions of this schedule be entitled to be registered as holder of any stock and to be paid any deposits to which the appointor shall be entitled at his death to the extent of a total value of not exceeding one hundred pounds.

Revocation of nominations.

3.—(1) Any nomination made under the provisions of this schedule may be revoked in manner mentioned in Part II. of this schedule but shall not be revocable or variable by the will of the appointor or any codicil thereto.

(2) The marriage of an appointor shall operate as a revocation of any nomination made by him before such marriage.

Proceedings on death of nominator.

4. After the expiration of one month from the death of an appointor who has made a nomination in force at his death the directors or the trustees (as the case may require) shall subject to the provisions of this schedule give effect to such nomination and shall in accordance with the directions of the nomination but subject to the extent mentioned in clause 2 of this Part of this schedule register the nominee as holder of the stock and pay to the nominee the deposits to which the appointor was entitled at his death or as the case may be the portion of the stock and deposits comprised in the nomination Provided that if the directors or trustees receive notice of any claim of a creditor of the deceased appointor before the expiration of one month from his death they shall retain the whole amount of the stock or deposits comprised in the nomination or a sufficient amount thereof to satisfy the claim (whichever amount shall be the lesser) until the said claim has been satisfied disproved or withdrawn.

Legality of acts done in ignorance of marriage of nominator.

5. Where the directors or trustees have registered stock in the name of or paid deposits to a nominee in ignorance of a marriage of the deceased appointor contracted subsequent to the nomination the registration shall be deemed to have been lawfully made and the receipt of the nominee shall be a valid discharge for any sum so paid and neither the directors nor the trustees shall be under any liability to any other person claiming such stock or deposits

6. In the event of the directors or trustees being restricted under the provisions of this schedule from giving effect to any nomination made by a deceased appointor and in force at his death relating to both stock and deposits to the whole extent thereof they shall primarily give effect thereto to the extent to which it relates to stock.

A.D. 1916.

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Nominations to
take effect as
regards stock
in priority to
deposits.

7.—(i) If any appointor shall die without having made any nomination under this schedule in force at his death and the total value of the stock and deposits to which he is entitled at his death does not exceed one hundred pounds and probate of the will of the appointor or letters of administration to his estate are not produced within such time (not being less than one month after his death) as the directors think reasonable then at the expiration of such time the directors or the trustees (as the case may require) shall subject to the provisions of this Part of this schedule register the stock in the names of and pay the deposits to—

Disposal in
case of no
nomination.

- (A) The widow (if any) of the deceased appointor;
- (B) If there be no widow the person or persons entitled to his effects according to the statutes for the distribution of the effects of intestates in the respective shares in which they are entitled under those statutes; or
- (C) In any event if the directors think fit to any person who has paid the funeral expenses of the appointor up to an amount not exceeding the total amount of such expenses:

Provided that in every case where the deceased appointor has left no widow and the persons entitled under the said statutes are more than two the directors may if they think fit sell the stock and distribute the proceeds (after deducting the proper expenses of such sale and distribution) among such persons in the shares in which they are entitled under the said statutes and for the purposes of such sale the directors may by a resolution authorise the secretary to execute the transfer of the stock to the purchaser or the purchasers thereof:

Provided also that if the directors or trustees receive notice of any claim of a creditor of the deceased appointor before the expiration of one month from the death of the appointor they shall retain the whole amount of the stock or deposits of the deceased appointor in their hands or a sufficient amount thereof to satisfy the claim (whichever amount shall be the lesser) until the said claim has been satisfied disproved or withdrawn.

(ii) The provisions of this clause shall also apply in the case of the death of any appointor being entitled at his death to stock or deposits of a total value not exceeding one hundred pounds who has made a nomination in force at his death where such nomination relates to a portion only of the stock and deposits to which he is entitled at his death but in such case the provisions of this clause shall extend

A.D. 1916. — only to the portion of the stock or deposits to which the nomination does not relate.

(iii) Any registration of stock or payment of deposits or the proceeds of any sale made either (A) under the foregoing provisions of this clause in the name of or to any person who at the time appears to the directors to be entitled to such stock deposits or proceeds under such provisions or (B) under the provisions of clause 9 or clause 10 of this Part of this schedule in the name of or to any person on behalf of or for the benefit of or as trustee for any person who at the time appears to the directors to be so entitled as aforesaid and any sale of stock to a bonâ fide purchaser made by the directors under the provisions of this clause shall be valid and effectual against any demand made upon the Company or the directors or the trustees by any other person. Provided nevertheless that the legal personal representative of the deceased appointor shall have remedy for the recovery of such stock deposits or proceeds against the person in whose name the same shall have been registered or to whom the same shall have been paid but nothing in this proviso shall confer upon any person any such remedy against a bonâ fide purchaser of such stock or against the widow of a deceased appointor or shall confer upon any person in trust for or on behalf or for the benefit of whom the stock deposits or proceeds have been so registered or paid any such remedy against the person in whose name or to whom the same have been registered or paid.

Provisions as to fractional parts of one pound of stock.

8. In any case where under the provisions of this schedule any beneficiary would be entitled to be registered as the holder of any fractional part of one pound of stock either alone or together with an integral number of pounds of stock it shall be lawful for the directors in lieu of registering such beneficiary as holder of such fractional part of one pound of stock to pay to him a sum in cash equal to the value of such fractional part on the date of the death of the appointor in whose name the stock was previously registered and the trustees shall if so required by the directors forthwith repay such sum to the directors out of any moneys in their hands and such fractional part of stock shall forthwith be registered in the names of the trustees.

Provisions as to beneficiaries under sixteen.

9. Where any beneficiary is under the age of sixteen years and it is proved to the satisfaction of the directors that funds are needed for the maintenance education or benefit of such infant the directors or the trustees (as the case may require) may notwithstanding any other provisions of this Part of this schedule register the stock and pay the deposits to which the beneficiary is entitled or any part thereof in the name of or to any person who may satisfy the directors that he will apply any money so paid to him or received by him from the sale of or as dividend bonus or otherwise on such stock for the maintenance education or benefit of such beneficiary and the receipt

of such person shall be a good discharge to the directors and trustees for any sums so paid. A.D. 1916.

10. Where any beneficiary is under the age of sixteen years it shall be lawful for the directors by resolution to appoint any person whom they think fit to act as a trustee for such beneficiary and thereupon the directors or the trustees (as the case may require) shall notwithstanding any other provisions of this Part of this schedule register the stock and pay the deposits to which the infant beneficiary is entitled or any part thereof in the name of or to such person and such person shall so far as is necessary apply the deposits and any dividends bonuses or interest on the stock or deposits or shall sell the stock or any part thereof and apply the proceeds of such sale for the maintenance education or benefit of the beneficiary and the receipt of such person shall be a good discharge to the directors and trustees for any sums so paid. Provided always that if and when the beneficiary attains the age of sixteen years the person so appointed shall transfer or pay to the beneficiary any stock deposits dividends bonuses interest or proceeds of sale then held by such person on behalf of the beneficiary.

Directors may appoint trustee for beneficiary under 16.

11. When any beneficiary is an infant but over the age of sixteen years it shall be lawful for the infant to sell and transfer any stock registered in his name to the Company or the trustees at the value thereof.

Infant beneficiary over 16 may sell stock.

12. The receipt of any beneficiary who has attained the age of sixteen years shall be a good discharge for any sum paid to him under any of the provisions of this schedule notwithstanding such beneficiary has not attained the age of twenty-one years.

Receipt of infant beneficiary over 16.

13.—(1) If the principal value of the estate in respect of which estate duty is payable of any deceased appointor exceeds one hundred pounds any stock or deposits to which he is entitled at his death shall be liable to estate duty as part of the property on which that duty is charged and the directors before dealing with or disposing of the same under the provisions of this schedule may require a statutory declaration by a beneficiary that such principal value does not exceed one hundred pounds.

Estate duty payable in certain cases.

(2) Nothing in this clause however shall render the directors or the trustees accountable for the payment of the estate duty in respect of any stock deposits or other moneys which they have registered paid over distributed or otherwise disposed of in accordance with the provisions of this schedule.

14. Notwithstanding anything in this schedule provided if the total value of the stock and deposits to which the appointor was entitled at his death exceeds eighty pounds the directors and/or the

As to stock and deposits exceeding 80l.

A.D. 1916. — trustees shall before registering stock in the name of or making any payment to any person other than the legal personal representative of the deceased appointor to an extent greater than three fourths of the total value of such stock and deposits require production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty and a duly stamped receipt for the succession or legacy duty payable in respect of the stock and deposits or a certificate from the said Commissioners stating that no such duty is payable thereon and the Commissioners shall give such certificate on receipt of payment of the duty or satisfactory proof that such duty has been paid or that no such duty is payable as the case may be.

PART II.

REGULATIONS AS TO NOMINATIONS.

1. A nomination shall be in writing in the form prescribed by the directors and shall be signed by the appointor in the presence of a witness.

2. A nomination may be revoked by the appointor by a subsequent nomination made and registered in accordance with these regulations or by writing under his hand signed in the presence of a witness.

3. A nomination or a revocation shall be sent by post to or left at the office of the secretary during the lifetime of the appointor.

4. A nomination or a revocation when received by the secretary shall be registered by him forthwith and the receipt thereof shall be acknowledged but the secretary may refuse to register a nomination or a revocation which does not comply with these regulations.

5. A nomination or a revocation which does not comply with these regulations or has not been received by the secretary shall not have any validity or effect.

6. A nomination may relate to the whole of the stock and deposits to which the appointor may be entitled or to part only thereof.

7. Except where otherwise stated a nomination shall be deemed to extend to all stock and deposits to which the appointor is entitled at the time of his decease up to a total value not exceeding one hundred pounds but an appointor may in a nomination expressly exclude any part of such stock or deposits from the operation of such nomination.

8. A nomination may be in favour of one person or of several persons and in the latter case may subject as hereinafter mentioned direct that on the death of the appointor the stock shall be registered in the name of and the deposits shall be paid to one or more of the nominees or that the nominees shall be registered as owners of the stock and shall take the deposits respectively in specified shares or

may give directions to both effects Provided that it shall not be lawful for a nomination to direct that stock shall be registered in the names of more than two persons as joint holders. A.D. 1916.

9. No person who witnesses the signature of an appointor to a nomination shall take any benefit under such nomination.

THE THIRD SCHEDULE.

ENACTMENTS REPEALED.

Name of Act.	Extent of Repeal.	Date of Repeal taking effect.
Colchester Gas Company's Act 1866—		
Section 7 - -	The whole section - -	Passing of this Act.
Section 24 - -	Paragraph (c) - -	Passing of this Act.
Section 36 - -	The whole section - -	Passing of this Act.
Section 49 - -	The whole section - -	Passing of this Act.
Section 59 - -	The whole section - -	Passing of this Act.
Section 61 - -	The whole section - -	Passing of this Act.
Section 65 - -	The whole section - -	Passing of this Act.
Section 69 - -	The whole section - -	Passing of this Act.
Section 72 - -	The words "lighting power and" in both places where those words occur.	1st day of January 1917.
Section 73 - -	The words "lighting power or" in both places where those words occur.	1st day of January 1917.
Section 78 - -	The whole section - -	1st day of January 1917.
Section 80 - -	The whole section - -	Passing of this Act.
Section 81 - -	The whole section - -	Passing of this Act.
Section 83 - -	The whole section - -	Passing of this Act.
Colchester Gas Company's Act 1875—		
Section 11 - -	The whole section - -	1st day of January 1917.
Section 13 - -	The whole section - -	Passing of this Act.
Section 17 - -	The whole section - -	Passing of this Act.
Section 22 - -	The whole section - -	1st day of January 1917.
Section 23 - -	The whole section - -	1st day of January 1917.
Section 27 - -	From the word "tested" to the words "and shall be".	1st day of January 1917.
Section 28 - -	The whole section - -	1st day of January 1917.
Section 30 - -	The whole section - -	Passing of this Act.
Section 32 - -	The whole section - -	Passing of this Act.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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